

25STCV04625 25STCV04625

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Case Number: 25STCV04625 Hearing Date: September 17, 2026 Dept: 400

MOTION FOR

SANCTIONS

The Court tenders the following

tentative decision in the matter Robert Fernandez v. Edgar Campos, et al.,

Los Angeles County Superior Court case number 25STCV04625, set for hearing on September

17, 2026. Edgar Campos (Defendant) moves for an order imposing evidentiary or monetary

sanctions on Robert Fernandez (Plaintiff) and his counsel pursuant to Code of

Civil Procedure section 2023.030. Plaintiff has not filed an opposition. The

motion is denied.

A.

Legal Standard

Misuses of the discovery process justify the imposition of sanctions.

(Code Civ. Proc., § 2023.030.) Monetary and issue sanctions are authorized

where a party engages in a misuse of the discovery process. A variety of

factors are relevant to the trial court's determination of which sanction to

impose, including: "1) the time which has elapsed since [discovery requests]

were served, 2) whether the party served was previously given a voluntary

extension of time, 3) the number of interrogatories propounded, 4) whether the

unanswered questions sought information which was difficult to obtain, 5)

whether the answers supplied were evasive and incomplete, 6) the number of

questions which remained unanswered, 7) whether the questions which remain

unanswered are material to a particular claim or defense, 8) whether the

answering party has acted in good faith, and with reasonable diligence, 9) the

existence of prior orders compelling discovery and the answering party's

response thereto, 10) whether the party was unable to comply with the previous

order of the court, 11) whether an order allowing more time to answer would enable the answering party to supply the necessary information, and, 12) whether a sanction short of dismissal or default would be appropriate to the dereliction.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 796–797.)

B. Discussion

Defendant argues for the imposition of monetary and evidentiary sanctions in response to alleged discovery abuse by Plaintiff. Failing to respond to an authorized method of discovery or making unmeritorious objections constitute misuses of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d), (e).) Here, Defendant takes issue with Plaintiff’s lodging objections to his subpoena. However, rather than seeking to compel compliance with the subpoena, Defendant seeks oppressive monetary and evidentiary sanctions. In doing so, Defendant puts the cart before the horse. The Court is not inclined to impose discovery sanctions before a motion to compel compliance with a subpoena is even filed. Accordingly, Defendant’s motion is denied.

C. Conclusion

The Court denies Defendant’s motion for sanctions.